

14.09.2023
For order

Learned counsel for decree holder has filed a memo seeking an order to transfer the decree to District & Sessions Judge, at Ramanagara.

2. Learned counsel for Decree Holder submitted that, judgment debtor JDR.No.1 & 2 are residing within the jurisdiction of above Court and therefore he prays to transfer the decree.

3. Heard arguments of learned counsel for decree holder and perused the materials placed on record. At the time of argument, learned counsel for decree holder requested for transfer of decree.

4. Sec.39 of CPC enables the court which passed the decree send the decree to another court of competent jurisdiction for execution. The provision enables the court to send the decree for execution to another Court of competent jurisdiction. The cause title of judgment passed in O.S.5576/2019 and Execution petition on hand clearly reveals that, defendant/Jdr No.1 & 2 are residing at Chikkamukkadlu, Bannimukkadlu Post, Kodahalli Hobli, Kanakapura Taluk, Ramanagara District. The Jdr's have not deposited or paid the decretal amount to Dhr. Therefore, learned counsel for Dhr., requested for transfer of decree to Hon'ble District & Sessions Court, Ramanagara. Hence, following

:: ORDER ::

Acting U/Sec. 39 (1) of CPC the decree is hereby transfered to Hon'ble District & Sessions Court, Ramanagara, for execution of decree passed in O.S.5576/2019.

Office to send the records to above court as per law.

Issue DTR. Accordingly memo is disposed off.

XIV ACC & SJ, Bengaluru.